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No. 19–7044. *FISHER v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 749.

No. 19–7051. *REYES-MARTINEZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 779 Fed. Appx. 262.

No. 19–7053. *BARNES v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 966.

No. 19–7056. *KINSEY v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 744.

No. 19–7059. *SCHIEFER v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 900.

No. 19–7062. *VILLANUEVA v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 771.

No. 19–7070. *TOMEY v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 783 Fed. Appx. 832.

No. 19–7072. *WALKER v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 789 Fed. Appx. 241.

No. 19–7075. *ROUSE v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 936 F. 3d 849.

No. 19–7078. *THOMPSON v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 319.

No. 19–7083. *PERDUE v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 778 Fed. Appx. 270.

No. 19–7084. *MORCOMBE v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 787 Fed. Appx. 581.

No. 19–7090. *EVANS v. UNITED STATES*. C. A. 4th Cir. Certiorari denied.

No. 19–7092. *CARMICHAEL v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 977.

No. 19–7098. *SHAW v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 19–7103. *MERRITT v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 934 F. 3d 809.

No. 19–7105. *VAZQUEZ-CHAVARRIA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 777.

No. 19–7106. *WOODLEY v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 788 Fed. Appx. 100.

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No. 19–7107. *PERKINS v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 788 Fed. Appx. 405.

No. 19–7115. *FAULKNER v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 926 F. 3d 475.

No. 19–7117. *INGRAM v. UNITED STATES*. C. A. 4th Cir. Certiorari denied.

No. 19–515. *AMATO v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. JUSTICE SOTOMAYOR and JUSTICE KAGAN took no part in the consideration or decision of this petition. Reported below: 763 Fed. Appx. 21.

No. 19–521. *CHARGEPOINT, INC. v. SEMACONNECT, INC.* C. A. Fed. Cir. Motion of Jeremy C. Doerre for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 920 F. 3d 759.

No. 19–6658. *SIMMONS v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U.S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

No. 19–6670. *BRIDGE v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U.S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

No. 19–6686. *HUNTER v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U.S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

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No. 19–6689. *FERNANDEZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U. S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

No. 19–6755. *GARCIA-CRUZ v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U. S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

No. 19–6759. *LACKEY v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U. S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

No. 19–6769. *HICKS v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U. S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

Rehearing Denied

No. 19–248. *JAMMAL ET AL. v. AMERICAN FAMILY INSURANCE CO. ET AL.*, 589 U. S. 1103;

No. 19–383. *RAIMONDO v. HOOD*, CHIEF JUDGE, UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF MICHIGAN, ET AL., 589 U. S. 1070;

No. 19–406. *TOUMA v. GENERAL COUNSEL OF THE REGENTS OF THE UNIVERSITY OF CALIFORNIA ET AL.*, 589 U. S. 1103;

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No. 19–410. *IN RE FIELDS*, 589 U. S. 1102;
No. 19–5885. *COLLINS v. GONZALEZ ET AL.*, 589 U. S. 1061;
No. 19–5914. *LASHER v. STAVIS ET AL.*, 589 U. S. 1071;
No. 19–5925. *RHODES v. SWARTH ET AL.*, 589 U. S. 1071;
No. 19–6074. *NELSON v. AMALGAMATED TRANSIT UNION LOCAL 1181–1061, AFL–CIO, ET AL.*, 589 U. S. 1084;
No. 19–6121. *IN RE STASZAK*, 589 U. S. 1058;
No. 19–6231. *CHAPMAN v. UNITED STATES*, 589 U. S. 1074;
No. 19–6251. *IN RE MAKDESSI*, 589 U. S. 1043; and
No. 19–6487. *DONAHUE v. PENNSYLVANIA*, 589 U. S. 1112. Petitions for rehearing denied.

No. 19–6189. *BROWN v. UNITED STATES*, 589 U. S. 1066. Petition for rehearing denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

JANUARY 29, 2020

Certiorari Denied

No. 19–922 (19A826). *LANCE v. GEORGIA*. Super. Ct. Jackson County, Ga. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied.

No. 19–7488 (19A858). *LANCE v. FORD, WARDEN*. Sup. Ct. Ga. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied.

FEBRUARY 6, 2020

Certiorari Denied

No. 19–7572 (19A876). *REVILLA OCHOA v. COLLIER, EXECUTIVE DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, ET AL.* C. A. 5th Cir. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied. Certiorari denied. Reported below: 802 Fed. Appx. 101.

FEBRUARY 14, 2020

Miscellaneous Orders

No. 18–1584. *UNITED STATES FOREST SERVICE ET AL. v. COWPASTURE RIVER PRESERVATION ASSN. ET AL.*; and

No. 18–1587. *ATLANTIC COAST PIPELINE, LLC v. COWPASTURE RIVER PRESERVATION ASSN. ET AL.* C. A. 4th Cir. [Cer-

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tiorari granted, 588 U. S. 948.] Motion of the Solicitor General for divided argument granted.

No. 18–8369. *LOMAX v. ORTIZ-MARQUEZ ET AL.* C. A. 10th Cir. [Certiorari granted, 589 U. S. 1031.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 19–7. *SEILA LAW LLC v. CONSUMER FINANCIAL PROTECTION BUREAU.* C. A. 9th Cir. [Certiorari granted, 589 U. S. 1031.] Motions of petitioner Seila Law LLC for enlargement of time for oral argument and for divided argument, and of United States House of Representatives for leave to participate in oral argument as *amicus curiae* and for divided argument granted, and the time is divided as follows: 20 minutes for petitioner, 20 minutes for the Solicitor General, 20 minutes for Court-appointed *amicus curiae*, and 10 minutes for United States House of Representatives.

FEBRUARY 18, 2020

Dismissal Under Rule 46

No. 19–5790. *LEE v. UNITED STATES.* C. A. 5th Cir. Certiorari dismissed under this Court’s Rule 46. Reported below: 771 Fed. Appx. 548.

FEBRUARY 20, 2020

Miscellaneous Order

No. 19–7696 (19A912). *IN RE SUTTON.* Application for stay of execution of sentence of death, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, denied. Petition for writ of habeas corpus denied.

Certiorari Denied

No. 19–7689 (19A910). *SUTTON v. TENNESSEE.* Ct. Crim. App. Tenn. Application for stay of execution of sentence of death, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, denied. Certiorari denied.

FEBRUARY 21, 2020

Miscellaneous Order

No. 19A905. *WOLF, ACTING SECRETARY OF HOMELAND SECURITY, ET AL. v. COOK COUNTY, ILLINOIS, ET AL.* D. C. N. D. Ill.

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Application for stay, presented to JUSTICE KAVANAUGH, and by him referred to the Court, granted, and the District Court's October 14, 2019, order granting preliminary injunction is stayed pending disposition of the Government's appeal in the United States Court of Appeals for the Seventh Circuit and disposition of the Government's petition for writ of certiorari, if such writ is timely sought. Should the petition for writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. JUSTICE GINSBURG, JUSTICE BREYER, and JUSTICE KAGAN would deny the application.

JUSTICE SOTOMAYOR, dissenting.

Today's decision follows a now-familiar pattern. The Government seeks emergency relief from this Court, asking it to grant a stay where two lower courts have not. The Government insists—even though review in a court of appeals is imminent—that it will suffer irreparable harm if this Court does not grant a stay. And the Court yields.

But this application is perhaps even more concerning than past ones. Just weeks ago, this Court granted a stay of a different decision involving the same administrative rule at issue here, after the Government professed urgency because of the form of relief granted in the prior case—a nationwide injunction. The Government now uses that stay—of a nationwide injunction—to insist that it is entitled to one here. But the injunction in this case is limited to one State, Illinois. The Government cannot state with precision any of the supposed harm that would come from the Illinois-specific injunction, and the Court of Appeals for the Seventh Circuit has scheduled oral argument for next week. The Government's professed harm, therefore, boils down to an inability to enforce its immigration goals, possibly in only the immediate term, in one of 50 States. It is hard to say what is more troubling: that the Government would seek this extraordinary relief seemingly as a matter of course, or that the Court would grant it.

This case concerns a provision of the Immigration and Nationality Act that renders inadmissible any noncitizen who “is likely at any time to become a public charge.” 8 U.S.C. § 1182(a)(4)(A). The provision instructs immigration officers to consider, “at a minimum,” a person's “age; health; family status; assets, re-

sources, and financial status; and education and skills” in determining inadmissibility on this “public charge” basis. § 1182(a)(4)(B). For the last 20 years, field guidance has defined “public charge” as a person “primarily dependent on the government for subsistence.” 64 Fed. Reg. 28689 (1999) (internal quotation marks omitted). Per that guidance, immigration officers were not to consider noncash public benefits in deciding whether a noncitizen met that definition.

In August 2019, the Department of Homeland Security issued a regulation that changed this longstanding definition. This new regulation (the public-charge rule) now defines a “public charge” as “an alien who receives one or more designated public benefits for more than 12 months in the aggregate within any 36-month period (such that, for instance, receipt of two benefits in one month counts as two months).” 84 Fed. Reg. 41295. The regulation also expands the type of benefits that may render a noncitizen inadmissible, including noncash benefits such as the Supplemental Nutrition Assistance Program (formerly food stamps), most forms of Medicaid, and various forms of housing assistance. *Ibid.*

Several lawsuits followed, one of which reached this Court last month. See Application for Stay of Injunctions in *Department of Homeland Security v. New York*, No. 19A785 (New York cases). The Government in no small part insisted that it was entitled to a stay because of the scope of relief awarded below: The District Court in the New York cases imposed a nationwide injunction that “rendered effectively academic” the Government’s successful litigation on the public-charge rule elsewhere. *Id.*, at 4. The Government’s unquestionable focus was the scope of that injunction: Its stay application used the word “nationwide” 34 times.

Over the dissent of four Justices, this Court granted the Government’s application for a stay. *Department of Homeland Security v. New York*, 589 U. S. 1173 (2020). Two Justices concurred in the grant of the stay, emphasizing—as the Government did—the “equitable and constitutional questions raised by the rise of nationwide injunctions.” *Id.*, at 1176 (GORSUCH, J., concurring in grant of stay). No Member of the Court discussed the application’s merit apart from its challenges to the injunction’s nationwide scope.

In the meantime, other courts considered the public-charge rule, and one—the District Court in this case—ruled much more

narrowly. The District Court concluded that the plaintiffs in the case before it were entitled to a preliminary injunction, based on self-described “dry and arguably bloodless” legal analysis. *Cook County v. McAleenan*, 417 F. Supp. 3d 1008, 1031 (ND Ill. 2019). But it did not award nationwide relief as the New York court had: It merely prevented the Government from enforcing the public-charge rule in Illinois, where the “‘nearly 100 nonprofit organizations and social and health service providers’” represented by one of the plaintiffs were located. *Id.*, at 1030.

After the District Court declined to stay enforcement of its injunction pending appeal, the Government asked the Seventh Circuit to intervene and stay the injunction itself. On December 23, 2019, the Seventh Circuit declined, and instead set an expedited briefing schedule to ensure prompt consideration of the issue. As part of that expedited schedule, the Seventh Circuit set oral argument for February 26, 2020—five days from now.

Notably, the Government initially chose not to appeal the Seventh Circuit’s decision denying a stay. Instead, while letting the normal appellate process play out in this case, it urged this Court to review a later issued decision granting a nationwide injunction—in no small part because it was a nationwide injunction. Yet now that this Court acceded to that request, the Government wants more: It asks this Court to grant a stay of the District Court’s considered—and considerably narrower—order below.

One might wonder what the trouble is with granting a stay in this case. After all, by granting a stay in the New York cases, the Court effectively has already allowed the Government to enforce the public-charge rule elsewhere—why not Illinois too? But—even putting aside the dissent of four Justices in the New York cases and the plaintiffs’ weighty arguments on the merits—the Court should not forget the burden the Government must carry to obtain a stay. To warrant this “‘extraordinary’” relief, *Williams v. Zbaraz*, 442 U.S. 1309, 1316 (1979) (Stevens, J., in chambers), it is not enough for a party to point to an important legal issue, or even one that is likely to obtain the assent of five Justices on the merits (which is far from certain here). Instead, to justify upending the normal rules of appellate procedure, a party must also show a likelihood of irreparable harm. *Packwood v. Senate Select Comm. on Ethics*, 510 U.S. 1319, 1320 (1994) (Rehnquist, C. J., in chambers). And “[b]ecause this matter is

pending before the Court of Appeals, and because the Court of Appeals denied” the Government’s motion for a stay, the Government now bears “an especially heavy burden.” *Ibid.*

The Government has not made that showing here. Its public-charge rule is set to go into effect in 49 of 50 States next week. The Seventh Circuit is set to consider the Illinois-specific injunction next week as well, with a decision to follow shortly thereafter. And the Government is unable to articulate how many cases—if any—this narrow injunction would affect in the meantime. In sum, the Government’s only claimed hardship is that it must enforce an existing interpretation of an immigration rule in one State—just as it has done for the past 20 years—while an updated version of the rule takes effect in the remaining 49. The Government has not quantified or explained any burdens that would arise from this state of the world. Indeed, until this Court granted relief in the New York cases, the Government itself did not consider this Illinois-specific harm serious enough to warrant asking this Court for relief.

These facts—all of which undermine the Government’s assertion of irreparable harm—show two things, one about the Government’s conduct and one about this Court’s own. First, the Government has come to treat “th[e] exceptional mechanism” of stay relief “as a new normal.” *Barr v. East Bay Sanctuary Covenant*, 588 U. S. 942, 945 (2019) (SOTOMAYOR, J., dissenting from grant of stay). Claiming one emergency after another, the Government has recently sought stays in an unprecedented number of cases, demanding immediate attention and consuming limited Court resources in each. And with each successive application, of course, its cries of urgency ring increasingly hollow. Indeed, its behavior relating to the public-charge rule in particular shows how much its own definition of irreparable harm has shifted. Having first sought a stay in the New York cases based, in large part, on the purported harm created by a nationwide injunction, it now disclaims that rationale and insists that the harm is its temporary inability to enforce its goals in one State.

Second, this Court is partly to blame for the breakdown in the appellate process. That is because the Court—in this case, the New York cases, and many others—has been all too quick to grant the Government’s “reflexiv[e]” requests. *Id.*, at 946. But make no mistake: Such a shift in the Court’s own behavior comes at a cost.

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Stay applications force the Court to consider important statutory and constitutional questions that have not been ventilated fully in the lower courts, on abbreviated timetables and without oral argument. They upend the normal appellate process, putting a thumb on the scale in favor of the party that won a stay. (Here, the Government touts that in granting a stay in the New York cases, this Court “necessarily concluded that if the court of appeals were to uphold the preliminary injunctio[n], the Court likely would grant a petition for a writ of certiorari” and that “there was a fair prospect the Court would rule in favor of the government.” Application 3.) They demand extensive time and resources when the Court’s intervention may well be unnecessary—particularly when, as here, a court of appeals is poised to decide the issue for itself.

Perhaps most troublingly, the Court’s recent behavior on stay applications has benefited one litigant over all others. This Court often permits executions—where the risk of irreparable harm is the loss of life—to proceed, justifying many of those decisions on purported failures “to raise any potentially meritorious claims in a timely manner.” *Murphy v. Collier*, 587 U. S. 901, 916 (2019) (statement of KAVANAUGH, J.); see also *id.*, at 907 (ALITO, J., joined by THOMAS and GORSUCH, JJ., dissenting from grant of stay) (“When courts do not have adequate time to consider a claim, the decisionmaking process may be compromised”); cf. *Dunn v. Ray*, 586 U. S. 1138 (2019) (overturning the grant of a stay of execution). Yet the Court’s concerns over quick decisions wither when prodded by the Government in far less compelling circumstances—where the Government itself chose to wait to seek relief, and where its claimed harm is continuation of a 20-year status quo in one State. I fear that this disparity in treatment erodes the fair and balanced decisionmaking process that this Court must strive to protect.

I respectfully dissent.

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Certiorari Granted—Vacated and Remanded. (See also *Roman Catholic Archdiocese of San Juan v. Acevedo Feliciano*, 589 U. S. 57 (2020) (*per curiam*).)

No. 19–568. *MATSURA v. UNITED STATES*. C. A. 9th Cir. Certiorari granted, judgment vacated, and case remanded for fur-

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ther consideration in light of *Rehaif v. United States*, 588 U. S. 225 (2019). Reported below: 924 F. 3d 1030.

No. 19–6496. *SMITH v. UNITED STATES*. C. A. 4th Cir. Reported below: 771 Fed. Appx. 197; and

No. 19–6871. *VAZQUEZ v. UNITED STATES*. C. A. 2d Cir. Reported below: 763 Fed. Appx. 136. Motions of petitioners for leave to proceed *in forma pauperis* granted. Certiorari granted, judgments vacated, and cases remanded for further consideration in light of *Rehaif v. United States*, 588 U. S. 225 (2019).

Certiorari Dismissed

No. 19–6836. *WIMBUSH v. MICKENS, WARDEN*. Sup. Ct. Ga. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 19–6844. *SANTIAGO v. HILL, ASSOCIATE JUDGE, CIRCUIT COURT OF ILLINOIS, COOK COUNTY*. Sup. Ct. Ill. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 19–6851. *LASHER v. NEBRASKA STATE BOARD OF PHARMACY ET AL.* C. A. 8th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. Reported below: 749 Fed. Appx. 494.

No. 19–6886. *DONAHUE v. SUPERIOR COURT OF PENNSYLVANIA ET AL.* C. A. 3d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 19–7100. *JONES v. WETZEL, SECRETARY, PENNSYLVANIA DEPARTMENT OF CORRECTIONS, ET AL.* C. A. 3d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. JUSTICE ALITO took no part in the consideration or decision of this motion and this petition.

No. 19–7156. *CLAYBORNE v. HANSEN, WARDEN*. Ct. App. Neb. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. Reported below: 27 Neb. App. xxxviii.

No. 19–7200. *ADAMS v. CALHOUN COUNTY, MICHIGAN, ET AL.* C. A. 6th Cir. Motion of petitioner for leave to proceed *in forma*

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pauperis denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in non-criminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin v. District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 19-7389. *MCCREA v. DISTRICT OF COLUMBIA OFFICE OF HUMAN RIGHTS ET AL.* Ct. App. D. C. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

Miscellaneous Orders

No. 19A721 (19-1024). *POWE ET UX. v. DEUTSCHE BANK NATIONAL TRUST CO.* D. C. E. D. Tex. Application for stay, addressed to JUSTICE SOTOMAYOR and referred to the Court, denied.

No. 19A728. *PRATT v. BARR, ATTORNEY GENERAL.* Application for stay of removal, addressed to JUSTICE GINSBURG and referred to the Court, denied.

No. D-3059. *IN RE DISCIPLINE OF HANNAH.* Lewis P. Hannah III, of Philadelphia, Pa., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3060. *IN RE DISCIPLINE OF TORRES.* Justin Alan Torres, of Alexandria, Va., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3061. *IN RE DISCIPLINE OF DESANTIS.* Glenn D. DeSantis, of Voorhees, N. J., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3062. *IN RE DISCIPLINE OF WATT.* Joseph C. Watt, Jr., of Fayetteville, N. Y., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

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No. D-3063. *IN RE DISCIPLINE OF ERWIN*. Frank Woodson Erwin, of Fort Myers, Fla., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3064. *IN RE DISCIPLINE OF VANDERBURG*. Keith Allan Vanderburg, of Independence, Ohio, is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3065. *IN RE DISCIPLINE OF FARTHING*. Philip R. Farthing, of Norfolk, Va., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D-3066. *IN RE DISCIPLINE OF CARR*. Jacqueline Carr, of Slidell, La., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring her to show cause why she should not be disbarred from the practice of law in this Court.

No. 19M95. *HOLLAND v. KEMP, GOVERNOR OF GEORGIA*. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 19M96. *KANEKA CORP. v. XIAMEN KINGDOMWAY GROUP CO. ET AL.* Motion for leave to file petition for writ of certiorari under seal with redacted copies for the public record denied.

No. 19M97. *ADAMS v. UNITED STATES*. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal denied.

No. 19M98. *IN RE TCT MOBILE INTERNATIONAL LTD.* Motion for leave to file petition for writ of mandamus with supplemental appendix under seal denied.

No. 19M99. *KAUR v. MARYLAND*;

No. 19M100. *H. K. V. v. FLORIDA DEPARTMENT OF CHILDREN AND FAMILIES ET AL.*; and

No. 19M101. *H. K. V. v. FLORIDA DEPARTMENT OF CHILDREN AND FAMILIES ET AL.* Motions for leave to file petitions for writs

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of certiorari with supplemental appendixes under seal granted.

No. 19M102. *KNOCH v. MIHAYLO*. Motion for leave to file petition for writ of certiorari under seal denied.

No. 150, Orig. *ARIZONA v. CALIFORNIA*. Motion for leave to file bill of complaint denied. [For earlier order herein, see 588 U. S. 903.]

JUSTICE THOMAS, with whom JUSTICE ALITO joins, dissenting.

Today the Court denies Arizona leave to file a complaint against California. Although we have discretion to decline review in other kinds of cases, see 28 U. S. C. §§ 1254(1), 1257(a), we likely do not have discretion to decline review in cases within our original jurisdiction that arise between two or more States.

The Constitution establishes our original jurisdiction in mandatory terms. Article III states that, “[i]n all Cases . . . in which a State shall be [a] Party, the supreme Court *shall* have original Jurisdiction.” § 2, cl. 2 (emphasis added). In this circumstance, “[w]e have no more right to decline the exercise of jurisdiction which is given, than to usurp that which is not given.” *Cohens v. Virginia*, 6 Wheat. 264, 404 (1821) (Marshall, C. J., for the Court).

Our original jurisdiction in suits between two States is also “exclusive.” § 1251(a). As I have previously explained, “[i]f this Court does not exercise jurisdiction over a controversy between two States, then the complaining State has no judicial forum in which to seek relief.” *Nebraska v. Colorado*, 577 U. S. 1211, 1212 (2016) (opinion dissenting from denial of motion for leave to file complaint). Denying leave to file in a case between two or more States is thus not only textually suspect, but also inequitable.

The Court has provided scant justification for reading “shall” to mean “may.” It has invoked its “increasing duties with the appellate docket,” *Arizona v. New Mexico*, 425 U. S. 794, 797 (1976) (*per curiam*) (internal quotation marks omitted), and its “structur[e] . . . as an appellate tribunal,” *Ohio v. Wyandotte Chemicals Corp.*, 401 U. S. 493, 498 (1971). But the Court has failed to provide any analysis of the Constitution’s text to justify our discretionary approach.

Although I have applied this Court’s precedents in the past, see *Wyoming v. Oklahoma*, 502 U. S. 437, 474, n. (1992) (dissenting opinion), I have since come to question those decisions, see *Nebraska, supra*, at 1213 (dissenting opinion). Arizona invites us

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to reconsider our discretionary approach, and I would do so. I respectfully dissent from the denial of leave to file a complaint.

No. 18–1323. JUNE MEDICAL SERVICES L. L. C. ET AL. *v.* RUSSO, INTERIM SECRETARY, LOUISIANA DEPARTMENT OF HEALTH AND HOSPITALS; and

No. 18–1460. RUSSO, INTERIM SECRETARY, LOUISIANA DEPARTMENT OF HEALTH AND HOSPITALS *v.* JUNE MEDICAL SERVICES L. L. C. ET AL. C. A. 5th Cir. [Certiorari granted *sub nom.* in No. 18–1323, *June Medical Services L. L. C. v. Gee*; in No. 18–1460, *Gee v. June Medical Services L. L. C.*, 588 U.S. 948.] Motion of Foundation for Life for leave to file brief as *amicus curiae* out of time denied.

No. 18–9526. MCGIRT *v.* OKLAHOMA. Ct. Crim. App. Okla. [Certiorari granted, 589 U.S. 1178.] Motion of petitioner to dispense with printing joint appendix granted.

No. 19–199. SALINAS *v.* UNITED STATES RAILROAD RETIREMENT BOARD. C. A. 5th Cir. [Certiorari granted, 589 U.S. 1127.] Motion of petitioner to dispense with printing joint appendix granted.

No. 19–251. AMERICANS FOR PROSPERITY FOUNDATION *v.* BECERRA, ATTORNEY GENERAL OF CALIFORNIA; and

No. 19–255. THOMAS MORE LAW CENTER *v.* BECERRA, ATTORNEY GENERAL OF CALIFORNIA. C. A. 9th Cir. The Solicitor General is invited to file a brief in these cases expressing the views of the United States.

No. 19–438. PEREIDA *v.* BARR, ATTORNEY GENERAL. C. A. 8th Cir. [Certiorari granted, 589 U.S. 1126.] Motion of petitioner to dispense with printing joint appendix granted.

No. 19–635. TRUMP *v.* VANCE, DISTRICT ATTORNEY OF THE COUNTY OF NEW YORK, ET AL. C. A. 2d Cir. [Certiorari granted, 589 U.S. 1120.] Motion of petitioner to dispense with printing joint appendix granted.

No. 19–5299. RIVERA ROSADO *v.* LUCID ENERGY, INC. C. A. 11th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [589 U.S. 908] denied.

No. 19–6804. HELMS *v.* WELLS FARGO BANK, N. A., ET AL. C. A. 9th Cir.;

No. 19–6967. BOYD ET AL. *v.* CALIFORNIA PUBLIC UTILITIES COMMISSION ET AL. C. A. 9th Cir.;

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No. 19–7081. ADEBOWALE *v.* WOLF, ACTING SECRETARY OF HOMELAND SECURITY, ET AL. C. A. 7th Cir.; and

No. 19–7268. RUPAK *v.* UNITED STATES. C. A. 9th Cir. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until March 16, 2020, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 19–934. IN RE BRITTON-HARR;

No. 19–6863. IN RE BONNELL;

No. 19–7285. IN RE WILKINSON;

No. 19–7312. IN RE HICKS;

No. 19–7420. IN RE FRANCIS;

No. 19–7491. IN RE BERRY;

No. 19–7509. IN RE MATTISON;

No. 19–7524. IN RE KOSSIE; and

No. 19–7555. IN RE FRENCH. Petitions for writs of habeas corpus denied.

No. 19–750. IN RE LAW OFFICES OF NINA RINGGOLD ET AL.;

No. 19–775. IN RE BUHANNIC;

No. 19–833. IN RE BUHANNIC;

No. 19–834. IN RE BUHANNIC;

No. 19–6888. IN RE LIBBY; and

No. 19–7029. IN RE FAHRING. Petitions for writs of mandamus denied.

No. 19–6917. IN RE JEFFERSON. Petition for writ of mandamus and/or prohibition denied.

No. 19–7050. IN RE ROSA;

No. 19–7154. IN RE EATON; and

No. 19–7366. IN RE JOHNSTON. Petitions for writs of prohibition denied.

Certiorari Granted

No. 19–123. FULTON ET AL. *v.* CITY OF PHILADELPHIA, PENNSYLVANIA, ET AL. C. A. 3d Cir. Certiorari granted. Reported below: 922 F. 3d 140.

Certiorari Denied

No. 18–9699. GARCIA *v.* UNITED STATES (Reported below: 756 Fed. App. 474); OLIVERA-SANCHEZ *v.* UNITED STATES (770 Fed.

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Appx. 207); *RAMOS v. UNITED STATES* (770 Fed. Appx. 674); and *TORRES-GOMEZ v. UNITED STATES* (764 Fed. Appx. 414). C. A. 5th Cir. Certiorari denied.

No. 19–107. *ASARO v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 767 Fed. Appx. 173.

No. 19–273. *BINDAY v. UNITED STATES*. C. A. 2d Cir. Certiorari denied.

No. 19–282. *OLIVAS-MOTTA v. BARR, ATTORNEY GENERAL*. C. A. 9th Cir. Certiorari denied. Reported below: 910 F. 3d 1271.

No. 19–284. *MERCADO RAMIREZ v. BARR, ATTORNEY GENERAL*. C. A. 9th Cir. Certiorari denied. Reported below: 745 Fed. Appx. 677.

No. 19–347. *AER ADVISORS, INC., ET AL. v. FIDELITY BROKERAGE SERVICES, LLC*. C. A. 1st Cir. Certiorari denied. Reported below: 921 F. 3d 282.

No. 19–389. *DOBYNS v. UNITED STATES*. C. A. Fed. Cir. Certiorari denied. Reported below: 915 F. 3d 733.

No. 19–433. *SUTHERLAND v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 921 F. 3d 421.

No. 19–475. *KARINGITHI v. BARR, ATTORNEY GENERAL*. C. A. 9th Cir. Certiorari denied. Reported below: 913 F. 3d 1158.

No. 19–486. *TAFFE, PERSONAL REPRESENTATIVE OF THE ESTATE OF THOMPSON, DECEASED v. WENGERT ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 459.

No. 19–488. *WALTNER ET UX. v. COMMISSIONER OF INTERNAL REVENUE*. C. A. 9th Cir. Certiorari denied. Reported below: 769 Fed. Appx. 448.

No. 19–527. *HUSKISSON v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 926 F. 3d 369.

No. 19–541. *LAMBERT v. ESTATE OF BROWN, BY ITS SUCCESSOR IN INTEREST BROWN, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 999.

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No. 19–569. *MANUEL AYESTAS v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied. Reported below: 933 F. 3d 384.

No. 19–600. *KRAKAUER v. CHRISTIAN, MONTANA COMMISSIONER OF HIGHER EDUCATION*. Sup. Ct. Mont. Certiorari denied. Reported below: 396 Mont. 247, 445 P. 3d 201.

No. 19–603. *SILGUERO ET AL. v. CSL PLASMA, INC.* C. A. 5th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 886.

No. 19–609. *SHEPHERD ET AL. v. STUDDARD*. C. A. 6th Cir. Certiorari denied. Reported below: 934 F. 3d 478.

No. 19–619. *CISCO SYSTEMS, INC. v. SRI INTERNATIONAL, INC.* C. A. Fed. Cir. Certiorari denied. Reported below: 930 F. 3d 1295.

No. 19–669. *WATKINS v. SAUL, COMMISSIONER OF SOCIAL SECURITY*. C. A. 8th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 707.

No. 19–691. *CLARK v. GEORGIA*. Sup. Ct. Ga. Certiorari denied. Reported below: 306 Ga. 367, 829 S. E. 2d 306.

No. 19–693. *BALOV v. CALIFORNIA*. Ct. App. Cal., 4th App. Dist., Div. 1. Certiorari denied. Reported below: 23 Cal. App. 5th 696, 233 Cal. Rptr. 3d 235.

No. 19–694. *BAKER, AS PERSONAL REPRESENTATIVE OF THE ESTATE OF BAKER, DECEASED v. CITY OF TRENTON, MICHIGAN, ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 936 F. 3d 523.

No. 19–695. *WEBB ET AL. v. DEERE CREDIT, INC., ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 787.

No. 19–698. *NORA v. MINNESOTA OFFICE OF LAWYERS PROFESSIONAL RESPONSIBILITY*. Sup. Ct. Minn. Certiorari denied. Reported below: 942 N. W. 2d 127.

No. 19–702. *O'BRYANT v. OKLAHOMA*. Ct. Crim. App. Okla. Certiorari denied.

No. 19–703. *DAVIS v. MTGLQ INVESTORS, L. P.* Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 270 So. 3d 392.

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No. 19–707. *ROSAS v. SAN ANTONIO HOUSING AUTHORITY ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 224.

No. 19–711. *MISSOURI EX REL. LAMASA v. WRIGHT, ASSOCIATE CIRCUIT JUDGE, 12TH JUDICIAL CIRCUIT, WARREN COUNTY, MISSOURI.* Sup. Ct. Mo. Certiorari denied.

No. 19–713. *NUNU v. RISK ET AL.* Ct. App. Tex., 14th Dist. Certiorari denied. Reported below: 567 S. W. 3d 462.

No. 19–716. *ZHI GANG ZHANG v. RASMUS ET AL.* Sup. Ct. S. D. Certiorari denied. Reported below: 2019 S.D. 46, 932 N. W. 2d 153.

No. 19–721. *GRIFFIN v. HUMANA EMPLOYERS HEALTH PLAN OF GEORGIA, INC.* Ct. App. Ga. Certiorari denied.

No. 19–722. *HUDACK v. LA CRESTA PROPERTY OWNERS ASSN.* Ct. App. Cal., 4th App. Dist., Div. 2. Certiorari denied.

No. 19–728. *DAVISON v. FACEBOOK, INC., ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 162.

No. 19–729. *MEYER v. PETERSON.* Ct. App. Minn. Certiorari denied.

No. 19–731. *PANCHO’S LLC v. HUGHES ET AL.* Sup. Ct. App. W. Va. Certiorari denied.

No. 19–734. *PATTERSON v. SELECT PORTFOLIO SERVICING, INC., ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 360.

No. 19–736. *CLARKE v. MCMURRAY, COMMISSIONER, GEORGIA DEPARTMENT OF TRANSPORTATION.* C. A. 11th Cir. Certiorari denied. Reported below: 763 Fed. Appx. 899.

No. 19–740. *BUTTS, INDIVIDUALLY AND ON BEHALF OF HER DAUGHTER, A. F., A MINOR v. UNITED STATES.* C. A. 4th Cir. Certiorari denied. Reported below: 930 F. 3d 234.

No. 19–744. *JACKSON v. DISTRICT OF COLUMBIA.* Ct. App. D. C. Certiorari denied.

No. 19–745. *WILLIAMS v. HOUSING OPPORTUNITIES FOR PERSONS WITH EXCEPTIONALITIES.* C. A. 11th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 451.

No. 19–749. *RITTER v. TUTTLE, WARDEN, ET AL.* C. A. 3d Cir. Certiorari denied.

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No. 19–752. *HAWAII MANAGEMENT ALLIANCE ASSN. v. RUDEL*. C. A. 9th Cir. Certiorari denied. Reported below: 937 F. 3d 1262.

No. 19–754. *ESTATE OF KNIGHT, DECEASED, ET AL. v. WHITTEN, AS SPECIAL ADMINISTRATOR OF THE ESTATE OF KNIGHT, DECEASED, ET AL.* Ct. App. S. C. Certiorari denied.

No. 19–755. *STEINER ET AL. v. UTAH STATE TAX COMMISSION*. Sup. Ct. Utah. Certiorari denied. Reported below: 2019 UT 47, 449 P. 3d 189.

No. 19–758. *YOUKHANNA ET AL. v. CITY OF STERLING HEIGHTS, MICHIGAN, ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 934 F. 3d 508.

No. 19–759. *SEGNER v. CIANNA RESOURCES INC.* C. A. 5th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 115.

No. 19–761. *KT CORP. ET AL. v. ABS HOLDINGS, LTD., ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 784 Fed. Appx. 21.

No. 19–768. *MARTIN v. MARINEZ ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 934 F. 3d 594.

No. 19–769. *ELKHARWILY v. FRANCISCAN HEALTH SYSTEM*. C. A. 9th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 758.

No. 19–770. *UNDERWOOD v. PHILLIPS, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19–771. *SENSABAUGH v. HALLIBURTON ET AL.* C. A. 6th Cir. Certiorari denied. Reported below: 937 F. 3d 621.

No. 19–773. *MERLINO ET AL. v. BUONINCONTI*. App. Div., Sup. Ct. N. Y., 2d Jud. Dept. Certiorari denied. Reported below: 171 App. Div. 3d 1069, 96 N. Y. S. 3d 864.

No. 19–778. *WEINHAUS v. ILLINOIS ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 314.

No. 19–781. *CONDEZ v. MASSACHUSETTS CIVIL SERVICE COMMISSION ET AL.* App. Ct. Mass. Certiorari denied. Reported below: 95 Mass. App. 1116, 126 N. E. 3d 1037.